

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, APRIL 28, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, April 28, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, April 27, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 42**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0084551 Discover Bank v. Stojkovich, Trisha

Motion for Plaintiff's Application to Change Plaintiff Name Due to Plaintiff Merger

Plaintiff requests to amend its name to Capital One, N.A., as successor by merger to Discover Bank. Defendant has been properly served with the summons and complaint. Judgment was previously entered in favor of plaintiff. The court grants plaintiff's unopposed motion to change plaintiff name due to plaintiff merger. Plaintiff's name is amended to **Capital One, N.A., successor by merger to Discover Bank**.

2. M-CV-0086045 Bank of America v. Fisk, Tracy Michelle

The motion to enforce settlement is dropped from calendar as no moving papers were filed with the court.

3. M-CV-0093785 Ryad, Fatima Zahra v. El Massioui, Ben

Plaintiff's Motion for Reclassification and for Leave to Amend

Plaintiff moves to reclassify from unlawful detainer limited less than \$10,000 to unlimited civil and for leave to amend the first amended complaint. Defendant opposed

the motion on procedural grounds as plaintiff failed to attach a proposed second amended complaint with her motion, in violation of California Rule of Court, Rule 3.1324(a)(1). In response to defendant's opposition, plaintiff submitted her proposed second amended complaint with her reply. The court granted a continuance to permit defendant leave to respond further following review of the proposed second amended complaint. No further response was filed.

Plaintiff's motion to reclassify this action to an unlimited civil case is granted. (Code Civ. Proc., §§ 403.020, 403.040.) Plaintiff shall forthwith submit the required fees to reclassify to an unlimited civil case. (Code Civ. Proc., §§ 403.040 (c)(1), 403.060; Gov. Code, § 70619.) Failure to pay the required fees may result in the case proceeding as a limited civil case or, on notice, dismissal of the action. (Code Civ. Proc., §§ 403.040 (d)(3), 403.060 (b).)

"The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading ..." Code Civ. Proc. § 473 (a)(1). "Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading." Code Civ. Proc. § 576.

Plaintiff's motion for leave to amend the first amended complaint is granted. (Code Civ. Proc., §§ 473, (a)(1), 576.) Plaintiff shall file and serve the second amended complaint **on or before May 8, 2026**.

4. S-CV-0044479 Placer Union H.S. Dist. v. Auburn Renewables

Plaintiff's motion for contract revision and for attorneys' fees and costs is continued to be heard on **May 5, 2026 at 8:30 a.m. in Department 42**. No further briefing is permitted. The court apologizes to the parties for any inconvenience.

5. S-CV-0049847 Sorensen, Sven v. Asher, Raymond

Motion to Enforce Settlement under CCP 664.6

Plaintiffs move the court to enforce terms of the settlement agreement between the parties and for an award of attorneys' fees pursuant to the terms of the agreement. The court previously continued the hearing on this matter to permit plaintiffs the opportunity to respond to additional information set forth in a supplemental response filed by defendant. The court has considered all filings by the parties in relation to the current motion.

Code of Civil Procedure section 664.6, subdivision (a) provides "[i]f parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." A court ruling on a motion under Code of Civil Procedure section 664.6 may consider the parties'

declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard. (*In re Marriage of Assemi* (1994) 7 Cal.4th 896, 905, 911; *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182.)

On or about February 26 and 27, 2025, plaintiffs Sven Sorensen and Susan Sorensen and defendant Raymond Asher executed a settlement agreement resolving all claims in this action. (See Pl. Errata. Exh. 1.) On July 11, 2025, based on the parties' stipulation, the court dismissed the action with prejudice and retained jurisdiction under Code of Civil Procedure section 664.6 to enforce the terms of the settlement agreement. Plaintiffs assert in this motion that defendant has not complied with numerous provisions of the settlement agreement relating to an easement that was the subject of this litigation ("the Easement").

Paragraphs 5 and 6

Paragraph 5 of the settlement agreement requires defendant to remove an existing retaining wall located within the Easement and to relocate the retaining wall closer to the eastern boundary of his property. Paragraph 5 includes numerous provisions regarding the new retaining wall, including that it be designed and engineered by a licensed structural engineer, geotechnical engineer, or other appropriate engineer; be constructed by an appropriately experienced licensed contractor; be properly permitted; include appropriate drainage systems; that defendant provide all engineering design documents and necessary permits to plaintiff upon receipt; that it pass required inspections; that construction be commenced within 120 days of the agreement or as otherwise required by the permitting process; and that it incorporate masonry bricks used for the current retaining wall, and additional masonry bricks of similar type, color and quality if necessary.

Paragraph 6 of the settlement agreement provides an alternative if the 20-foot roadway cannot be achieved solely by relocating the retaining wall, which would require defendant to remove or shift an existing fence.

Plaintiffs present evidence that although the original retaining wall was removed, it has not been relocated and reconstructed. Defendant admits the same but claims that "the engineer" advised that a retaining wall in that location was unnecessary. Defendant also proffers the opinion of Randy Pruss, a licensed contractor, that the retaining wall would not be safe "due to the slope, drainage conditions, and surrounding terrain". (See Declaration of Randy Pruss.) Defendant asserts that both Mr. Pruss and the unidentified engineer agreed that the retaining wall would not be safe, and that a properly engineered 2:1 slope would be the safest and most effective solution for stability and drainage.

In response, plaintiffs present the declaration of Chris Oliveira, a licensed engineer who was retained by defendant to design the replacement retaining wall. Mr. Oliveira denies that the retaining wall as designed would present any safety concerns and denies ever

making a determination that the retaining wall would not perform safely or posed a safety concern.

Despite Mr. Pruss's stated experience, it has not been satisfactorily demonstrated to the court that the replacement retaining wall as planned would be unsafe. Further, the settlement agreement terms expressly call for relocation and reconstruction of the retaining wall except in those circumstances where relocation of the retaining wall would not achieve the required 20-foot roadway. Even if this was demonstrated, the settlement agreement does not give defendant discretion to modify the terms as it pertains to the new retaining wall, nor did defendant seek to modify the settlement terms on the grounds that performance would be impossible or impractical. The court finds defendant has failed to perform under paragraphs 5 and/or 6 of the settlement agreement.

Paragraph 9

Paragraph 9 of the settlement agreement requires defendant to ensure the roadway within the Easement is properly graded and surfaced with gravel of the same or better quality as the gravel on the existing roadway; to ensure the roadway is graded to provide a smooth, level, and properly sloped surface to ensure proper drainage and usability; and to ensure the grading complies with applicable engineering standards and that the roadway remains stable and functional over time.

At the time their motion was filed, defendant had purportedly indicated to plaintiff's counsel that he would not complete these terms. Since the filing of the motion, however, defendant apparently did move forward with the necessary work to widen the roadway and defendant asserts all requirements of Paragraph 9 were complied with. As to the requirements of Paragraph 9, plaintiffs fail to establish a breach of the settlement terms at this time.

Paragraphs 15 and 16

Paragraph 15 of the settlement agreement requires defendant to address drainage along the northern end of his property and the southern end of plaintiffs' property; to hire appropriate experts, including but not limited to a licensed civil engineer or drainage specialist, to design and implement a drainage system at the northern end of his property which effectively manages water runoff to prevent flooding, erosion, or other adverse impacts to the southern end of plaintiff's property; and that the drainage work comply with applicable laws, regulations, and best practices for property and water management.

Paragraph 16 of the settlement agreement requires defendant to ensure that dirt and grading at the northern end of his property are repaired and leveled to allow safe and reasonable access to the southern end of plaintiff's property within the 20 foot roadway, with all work being performed by a licensed contractor.

Plaintiffs claim defendant has failed to comply with the requirements of Paragraph 15. In response, defendant asserts that Mr. Pruss, in conjunction with the engineer, advised him

that the 2:1 graded slope would be the most appropriate method by which to address drainage concerns. There is no indication that plaintiff engaged with a civil engineer.

It has not been satisfactorily demonstrated to the court that defendant has complied with Paragraph 15. Mr. Pruss's statements regarding the 2:1 graded slope do not appear to address the specifics of this provision, which require design and implementation of a drainage system in a specific area between the parties' properties. Defendant presents insufficient information to support the conclusion that the 2:1 graded slope would constitute a "drainage system" which effectively manages water runoff. The court finds defendant has failed to perform under paragraph 15 of the settlement agreement. However, plaintiffs offer no evidence that defendant failed to perform under paragraph 16 of the settlement agreement regarding the requirement that he ensure the dirt and grading at the northern end of his property are repaired and leveled to allow safe and reasonable access to the southern end of plaintiff's property.

Paragraphs 4, 13, and 20

Paragraph 4 of the settlement agreement requires defendant to engage a licensed surveyor to prepare an updated map reflecting the modified easement. The parties agreed to modifications including (1) the 20 foot portion of the easement be designated and reserved for ingress and egress only, with parking in or blocking of the ingress and egress prohibited; and (2) the existing 50 foot easement to remain for utility purposes only, including but not limited to water utilities.

Paragraph 13 of the settlement agreement requires defendant to hire a licensed surveyor to prepare all necessary documentation for the modified easement, including a detailed and accurate map reflecting the updated boundaries, dimensions, and configuration of the easement and any adjustments related to relocation of the retaining wall or fence, and a precise legal description of the modified easement suitable for recording purposes. Paragraph 13 further requires defendant to draft a new easement agreement to reflect modifications agreed to the parties.

Paragraph 20 requires defendant to take all reasonably necessary steps to ensure the new easement agreement is recorded and established as a superior interest to any existing or future recorded mortgage lien on defendant's property.

Plaintiffs present evidence defendant has failed to comply with the requirements of Paragraphs 4, 13, and 20. Defendant admits the same, asserting that because he restored and improved the existing easement, no new or modified easement was created, and the requirements of these paragraphs were not triggered.

Defendant's argument that the Easement has not been modified is unpersuasive given that the settlement agreement itself delineates modifications agreed to by the parties. The court finds plaintiff has failed to perform under paragraphs 4, 13, and 20 of the settlement agreement.

Attorneys' Fees

Paragraph 22 of the settlement agreement provides that the prevailing party in any legal action to enforce the agreement is entitled to recover their reasonable attorney's fees. The court finds plaintiffs are entitled to attorneys' fees as the prevailing party on this motion. Plaintiffs are awarded reasonable attorneys' fees in the amount of \$4,700.

Conclusion

Plaintiffs' motion is granted in part. Defendant is ordered to comply with Paragraphs 4, 5, 13, 15, and 20 of the settlement agreement within 60 days of service of notice of entry of order. The motion is otherwise denied. Plaintiffs are awarded attorneys' fees in the amount of \$4,700.

6. S-CV-0049529 Los Lagos Estates v. Le Garden Ha

The motion to release funds is dropped from calendar as moot as it was previously advanced and heard. (Law and Motion Minutes, Jan. 27, 2026 and Feb. 24, 2026.)

7. S-CV-0050671 Bente, Jennifer v. Granite Wellness Centers

Motion for Final Approval

Plaintiffs move for finally approving the parties' class action settlement. The motion is supported by insufficient notice. All moving papers and supporting documents shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended by two court days when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

Additionally, the moving papers indicate the 90-day deadline for class members to submit a claim will expire on April 27, 2026. The court will need updated information as to the total number of claims received after the expiration of the 90-day claim period.

The moving papers also indicate the settlement administrator has incurred \$42,553.66 in expenses and estimates the final overall expenses will be approximately \$84,897.21. However, this is significantly more than the amount the court preliminarily approved, which was \$58,575 or, if reminder notices were required, then \$64,100. The court intends to either (1) limit the settlement administration costs to those preliminarily approved or (2) take the difference in the amount claimed from the amount preliminarily approved from the attorneys' fees provided for in the parties' settlement, unless plaintiffs show cause why the court should change the amount of settlement administration costs. Plaintiffs may file and serve a supplemental brief on this issue, not to exceed 10 pages.

The motion for final approval is continued to **June 23, 2026 at 8:30 a.m. in Department 42**. Plaintiff shall file and serve notice of continued hearing and updated information

from the settlement administrator as to the total number of claims received during the 90-day claim period.

Motion for Attorneys' Fees, Costs, and Service Award

If oral argument is requested, it will be heard in Department 42 by the **Honorable Trisha J. Hirashima**.

Plaintiffs are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

The motion for attorneys' fees, costs, and service award is continued to be heard together with the motion for final approval on **June 23, 2026 at 8:30 a.m. in Department 42**. No further briefing is permitted.

8. S-CV-0051883 Victoria Figone v. Moana Beach Property Owners Assn.

Motion for Summary Adjudication

Plaintiff Victoria Figone ("Plaintiff") moves for summary adjudication on her sixth cause of action for declaratory relief (violation of Civil Code section 4765) against the Moana Beach Property Owners Association, Inc. ("Defendant" or "Association"), seeking a determination that the Association's denial of her accessory dwelling unit ("ADU") application is invalid as a matter of law. Plaintiff contends that, at the time the Association reviewed and denied her ADU application, it had not adopted or distributed written architectural review procedures as required by Civil Code section 4765 and its own governing documents. Plaintiff argues that this lack of statutory compliance deprived the Association of authority to act, such that the denial of her application must be declared void without regard to the reasonableness of the decision. The Defendants oppose the motion.

Preliminary Issues—Requests for Judicial Notice and Evidentiary Rulings

The court rules as follows on Plaintiff's Requests for Judicial Notice:

- (1) The request is granted as to Exhibits 23 (Complaint) and 24 (Answer) with respect to their existence and filing, but not as to the truth of the matters asserted therein. (Evid. Code § 452(d).)
- (2) The request is granted as to Exhibit 25 (CC&Rs) as a recorded governing document; the court takes notice of the document and its legal effect, but not of any disputed factual interpretations. (Evid. Code § 452(c) and (h).)
- (3) The request is granted as to Exhibits 26 and 29 (Tahoe Regional Planning Agency ("TRPA") Permits) as official acts of governmental agency; the court takes notice of the existence and issuance of the permits, but not of any factual findings or conclusions contained therein. (Evid. Code § 452(c).)
- (4) The request is granted in part as to Exhibits 27 and 28 (TRPA Site Plans and Architectural Sheets); the court takes notice that these documents were submitted

to and/ or approved by TRPA as part of the permitting process. The court does not take notice of the truth, accuracy, or technical content of the plans, including any measurements, impacts, or interpretations. To the extent that is requested, it is denied.

Plaintiff objects to defendants' Additional Material Facts, as opposed to objecting to the evidence supporting such facts. All objections are overruled as being in improper form. All objections are also overruled in substance.

Discussion

A motion for summary adjudication shall be granted where the moving party establishes there is no triable issue of material fact and it is entitled to judgment as a matter of law. (Code Civ. Proc. ("CCP") § 437c, subd. (c); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-851.) The court must view the evidence in the light most favorable to the non-moving party and resolve all doubts in favor of that party. (*Michaels v. Greenberg Traurig, LLP* (2021) 62 Cal.App.5th 512)

Plaintiff's sixth cause of action alleges that an actual controversy has arisen between the parties in that the Association has attempted to enforce the CC&Rs in an inconsistent, disparate, unreasonable, bad faith, and arbitrary and capricious manner by rejecting and/or denying Figone's ADU submittals, in violation of Civil Code section 4765. Plaintiff seeks a declaratory judgment determining the rights, duties and obligations of the parties under Civil Code section 4765 and further finding that the Association's failure to comply with Civil Code section 4765 renders the architectural standards unenforceable and void as applied to plaintiff's ADU submittals.

Civil Code section 4765, subdivision (c) states:

An association shall annually provide its members with notice of any requirement for association approval of physical changes to property. The notice shall describe the types of changes that require association approval and shall include a copy of the procedure used to review and approve or disapprove a proposed change.

Plaintiff asserts the Association failed to adopt and distribute, on an annual basis, written architectural review procedures, thus violating Civil Code section 4765, and rendering its denial of plaintiff's ADU application invalid as a matter of law. Plaintiff relies on *Ruffier v. Volcano Hills Road Maintenance Assn.* (2025) 117 Cal.App.5th 899. In *Ruffier*, the association did not dispute its failure to comply with reporting requirements of Civil Code section 5300.

To the extent plaintiff satisfies her burden as to the Association's failure to comply with Civil Code section 4765, the Association establishes a triable issue of material fact regarding the existence, nature and sufficiency of its procedures. The Association submits evidence of the existence of an operative procedure including plan submissions, committee review, neighbor input, requests for story poles, and appeals to the Board.

(UMF and DMF 6-9.) The application of consistent standards in evaluating applications, and utilization of a fair, reasonable and expeditious process present issues of fact. Plaintiff fails to establish entitlement to a declaratory judgment finding the Association was deprived of the authority to act based asserted procedural deficiencies.

Plaintiff's motion for summary adjudication is denied.

Motion to Continue Trial

The parties are required to appear in court on **April 28, 2026 at 8:30 a.m. in Department 42.**

9. S-CV-0052243 Alpine View Estates v. Tonopalo Private Residence Club

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Defendant moves for summary judgment or, in the alternative, summary adjudication of the second amended complaint's only claim for declaratory relief, contending the undisputed material facts show defendant is entitled to judgment. Plaintiff opposes the motion.

Evidentiary Rulings

Defendant's request for judicial notice filed with its moving papers is granted.

Defendant's objections to the Taylor declaration are overruled in their entirety.

Defendant's request for judicial notice filed with its reply is granted. However, as to Exhibits I and J, the court takes judicial notice that these documents are filed court records; the court does not take judicial notice of the truth of the information therein.

Ruling on the Motion

A party is entitled to bring a motion for summary judgment where there are no triable issues of fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) The defendant bears the initial burden of establishing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (*Id.* subd. (p)(2).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact. (*Ibid.*) A party may move for summary adjudication as to one or more causes of action if the party contends the cause of action has no merit. (*Id.* subd. (f)(1).) A party may move for summary adjudication as an alternative to summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (*Id.* subd. (f)(2).) In reviewing a

motion for summary judgment, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The court reviews the motion with these principles in mind.

Defendant presents evidence it is the owner of 6750 N. Lake Tahoe Blvd., Tahoe Vista, CA 96148 (“Tonopalo parcel”), which abuts the shore of Lake Tahoe, and plaintiff is the owner of 6731 N. Lake Tahoe Blvd., Tahoe Vista, CA 96148 (“Alpine parcel”), which does not. (SSUMF Nos. 1–3.) On March 18, 2002, defendant’s predecessor-in-interest Tonopalo LLC and plaintiff’s predecessor-in-interest Tahoe Real Estate Investment LLC (“TREI”) entered into an easement agreement, which was recorded, granting easement access across Alpine parcel to access Lake Tahoe. (SSUMF Nos. 3, 5.) The easement agreement was amended twice, and each amendment was likewise recorded. (SSUMF No. 6.) On October 6, 2003, plaintiff’s predecessor-in-interest TREI executed a Quitclaim Deed releasing the easement, which was likewise recorded. (SSUMF No. 7.) Plaintiff’s predecessor-in-interest Paul Klapper understood the Alpine parcel had no access across the Tonopalo parcel, but had tried to negotiate with defendant’s owner lake access across the Tonopalo parcel in exchange for parking and storage space on the Alpine parcel, but had not completed such an arrangement. (SSUMF Nos. 8–11; 12–16; 19–21.) Klapper had communicated to plaintiff’s owner, Mr. Taylor, that there was no lake access and provided an appraisal report by email on October 28, 2019 that noted there was no direct beach access. (SSUMF Nos. 10, 15–16.) Access to the Tonopalo parcel is restricted to its residents and their guests and since it opened in 2003 it has been openly and continuously maintained, improved, and developed by Tonopalo, including open and obvious blocked access to the easement area, including substantial improvements and structures, and “no one has ever been able to access the beach by going through this area, as it is completely blocked off.” (SSUMF Nos. 22–27.) Defendant and its members pay the property taxes for the Tonopalo parcel, including the area that would have been the easement area. (SSUMF No. 24.)

Defendant contends the alleged easement has long-since been abandoned. “Abandonment of an easement created by grant, as here, requires proof of (1) the cessation of use of the easement by the owner of the dominant tenement and (2) unequivocal and decisive acts on the part of the [dominant tenement], clearly showing an intention to abandon. [Citations.]” (*Visitacion Investment, LLC v. 424 Jessie Historic Properties, LLC* (2023) 92 Cal.App.5th 1081, 1090, internal quotation marks and citations omitted; see also Civ. Code, § 887.050.) “Although mere nonuse is insufficient to demonstrate an intent to abandon, a long period of nonuse may be considered as evidence of the necessary intent. [Citation.]” (*Visitacion, supra*, at p. 1090, citation omitted.) “Abandonment hinges upon the intent of the owner to forego all future conforming uses of the property.” (*Tract Development Services, Inc. v. Kepler* (1988) 199 Cal.App.3d 1374, 1380.) A servient tenement owner’s adverse use of an easement is a factor for the court to consider the dominant tenement’s intent to abandon the easement. (*Flanagan v. San Marcos Silk Co.* (1951) 106 Cal.App.2d 458, 463.)

Here, defendant submits evidence the owners of the dominant tenement have not used the easement since the servient tenement opened its business in 2003 and beach access is completely blocked off. (SSUMF Nos. 22–27.) Defendant also submits evidence that on October 6, 2003, plaintiff’s predecessor-in-interest, TREI, executed a quitclaim deed releasing the easement, which was recorded on November 4, 2003. (SSUMF No. 7.) This action was commenced on February 21, 2024, when the initial complaint was filed. This sufficiently shows, for the purposes of defendant’s initial burden, the dominant tenement’s nonuse from the time defendant opened in 2003 spanning more than 20 years to the filing of this action on February 21, 2024, a clear intent to abandon the easement by the execution and recordation of the quitclaim deed by plaintiff’s predecessor-in-interest, and the servient tenement’s adverse use of the easement area.

The burden therefore shifts to plaintiff to show one or more triable issues of material fact. Towards that end, plaintiff submits a responsive separate statement (“RSSUMF”) and a separate statement of additional material facts (“SSAMF”). Plaintiff argues the quitclaim deed was ineffective because it was only signed by one party when the easement agreement required both parties to sign. (SSAMF Nos. 3–5.) However, plaintiff’s predecessor-in-interest’s execution of a quitclaim deed is evidence of its intention to abandon the easement and, for this purpose, it is immaterial whether the quitclaim deed was effective. Plaintiff argues there is no admissible evidence that the owner and prior owners of the dominant tenement did not use the easement area for 20 years. However, plaintiff presents no evidence showing any owner of the dominant tenement used the easement area, so there is no evidence of a triable issue on this front. Plaintiff does present evidence, however, that its predecessor-in-interest Mr. Klapper was unaware of the easement agreement, the amendments thereto, or the quitclaim deed and that Mr. Klapper never communicated to plaintiff’s owner Mr. Taylor that he did not have beach access through defendant’s parcel or that he was negotiating an agreement for such. (RSSUMF No. 20.) As abandonment is a fact-specific inquiry where conflicting inferences from the facts must be tried to a trier of fact rather than disposed of by a motion for summary judgment (*Visitacion Investment LLC v. 424 Jessie Historic Properties LLC* (2023) 92 Cal.App.5th 1081, 1096), plaintiff’s evidence, in direct contradiction to defendant’s evidence, is sufficient to raise conflicting inferences to be drawn from the material facts. Plaintiff has sufficiently met its burden on the issue of abandonment.

Defendant contends, in the alternative, that the alleged easement has been extinguished by adverse possession. “An easement obtained by grant may be extinguished by adverse possession by owner of the servient tenement. [Citation.]” (*Sevier v. Locher* (1990) 222 Cal.App.3d 1082, 1084–85, citation omitted.) Adverse possession requires “(1) Possession must be by actual occupation under such circumstances as to constitute reasonable notice to the owner. (2) It must be hostile to the owner’s title. (3) The holder must claim the property as his own, under either color of title or claim of right. (4) Possession must be continuous and uninterrupted for five years. (5) The holder must pay all the taxes levied and assessed upon the property during the period. [Citation.]” (*Dimmick v. Dimmick* (1962) 58 Cal.2d 417, 421, citation omitted.) Defendant submits evidence that use of the easement area is restricted to its residents and their guests and

since it opened in 2003 it has been openly and continuously maintained, improved, and developed by Tonopalo, including open and obvious blocked access to the easement area, including substantial improvements and structures, and “no one has ever been able to access the beach by going through this area, as it is completely blocked off.” (SSUMF Nos. 22–27.) Defendant and its members pay the property taxes for the Tonopalo parcel, including the easement area. (SSUMF No. 24.) This sufficiently shows, for the purposes of defendant’s initial burden, that the easement has been extinguished by adverse possession.

The burden therefore shifts to plaintiff to show one or more triable issues of material fact. While plaintiff argues that a written easement agreement prevents adverse possession claims by establishing permissive use, an easement created by grant may be extinguished by adverse possession where the owner of the servient tenement nonpermissively erects and maintains permanent obstructions over the easement for the five-year period. (*Glatts v. Henson* (1948) 31 Cal.2d 368, 370–71.) Here, the erecting of structures over the easement area so as to block beach access is clearly without permission. Plaintiff falls short of its burden to show one or more triable issues of material fact as to adverse possession.

Defendant also contends plaintiff’s claim is time barred by any applicable statute of limitations. In light of the court’s above ruling on adverse possession which completely disposes of the only cause of action for declaratory relief, the court need not and does not render a decision on whether the action is barred by an applicable statute of limitations.

Based on the foregoing, defendant has shown entitlement to judgment and the motion for summary judgment is granted.

10. S-CV-0052963 Bardelmeier, Julie M v. Land Ocean Inc.

Plaintiff is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Preliminary Approval of Class Action and PAGA Settlement

Plaintiff seeks preliminary approval of the parties’ class action and PAGA settlement agreement. No opposition has been filed.

The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699, subd. (I); *O’Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully considered the class action and PAGA settlement agreement (Kim Decl., Exh. 1) and plaintiff's moving papers filed in connection with the motion, as well as the entire court file. The court determines a sufficient showing has been made that the settlement is fair, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class as "all non-exempt, hourly-paid employees that worked for defendant in California during the Settlement Class Period, which is the period from June 6, 2020, through March 10, 2025."

The court preliminarily approves the settlement agreement attached as Exhibit 1 to the Kim declaration and approves the proposed form of the notice attached as Exhibit A to Exhibit 1 to the Kim declaration, with one change: on page 7 or 8, the final approval hearing is listed as being in Department 40 rather than Department 42. The proposed notice shall be changed to designate Department 42 rather than Department 40. With this change, the proposed notice is approved.

The court appoints and designates Julie M. Bardelmeier as the class representative. The court appoints and designates D.Law, Inc. as class counsel for settlement purposes only. The court appoints and designates ILYM Group, Inc. as the settlement administrator.

The court also incorporates by reference all findings and orders set forth in the Proposed Order submitted in connection with the instant motion.

The final approval hearing is scheduled for **November 24, 2026 at 8:30 a.m. in Department 42**. The motion for final approval shall be filed and served in accordance with Code of Civil Procedure section 1005(b). Tentative ruling procedures pursuant to Local Rule 20.2.3 will apply to the motion for final approval.

Case Management Conference

In light of the court's above ruling on the motion for preliminary approval, no appearance is required for the Case Management Conference and no future Case Management Conferences are scheduled at this time.

11. S-CV-0053111 LeRoy, Joseph v. Pickett, Ryan A

The motion for judgment on the pleadings is continued to **May 5, 2026 at 8:30 a.m. in Department 42**. No further briefing is permitted. The court apologizes to the parties for any inconvenience.

12. S-CV-0053338 Demas, John v. Saetes, Peter

The motion for charging order and motion for attorneys' fees are both continued to **June 16, 2026 at 8:30 a.m. in Department 42**. No further briefing is permitted. The court apologizes to the parties for any inconvenience.

13. S-CV-0053949 McGettigan, Deborah v. John Mourier Construction

Moving Party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Cross-Defendants John Mourier Construction, Inc. and SV 218, LLC's Motion for Judgment on the Pleadings as to the Cross-Complaint filed by Pacific Coast Supply, LLC and AlCal Specialty Contracting, Inc.

Cross-defendants John Mourier Construction, Inc. and SV 218, LLC move for judgment on the pleadings as to the cross-complaint filed by Pacific Coast Supply, LLC and AlCal Specialty Contracting, Inc. Cross-complainants oppose the motion and request to file an amended cross-complaint.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Spencer*, 88 Cal.App.5th at 861.)

Cross-defendants brings the motion on the basis the cross-complaint fails to state a cause of action because it is ambiguous and unintelligible as defined in California Civil Procedure § 430.10(f). (Mot. J. Pleadings at 4.)

In response, cross-complainants concede their "hastily drafted" cross-complaint needs amending and requests leave under C.C.P. 473(a)(1) to file an amended cross-complaint.

Accordingly, cross-defendants' motion is granted, with leave for cross-complainants to amend the cross-complaint. (Code Civ. Proc., §§ 473, (a)(1), 576.) Cross-complainants shall file and serve an amended cross-complaint **on or before May 8, 2026**.

14. S-CV-0054573 Casey, Michael v. Casey, Donna Sue Eggleston

Motion for Attorneys' Fees

Defendant moves for an award of attorneys' fees and costs in the amount of \$26,323.21 (fees of \$19,564.56 for litigating a special motion to strike and costs of \$143.83 for filing that special motion to strike; and fees of \$6,545 for filing this motion and costs of \$69.82

for filing this motion) pursuant to Code of Civil Procedure section 425.16(c)(1). Plaintiff opposes the motion.

Defendant's request for judicial notice is granted.

Before examining the legal issues, a brief overview of the procedural history of this case is necessary. Plaintiff filed the complaint in this action on February 14, 2025 alleging claims for (1) sexual battery, (2) intentional infliction of emotional distress, (3) intentional tort for domestic violence, and (4) slander per se. Defendant demurred to the complaint and filed a special motion to strike, commonly referred to as an anti-SLAPP motion pursuant to Code of Civil Procedure section 425.16. By written ruling on August 15, 2025, the court granted the anti-SLAPP motion and ordered stricken paragraphs 7 to 11, 16 to 17, 20, and 28 to 33 and the fourth cause of action for slander per se. In the same written ruling, the court sustained the demurrer to the second and third causes of action.

"[A] prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." (Code Civ. Proc., § 425.16, subd. (c)(1).) As defendant prevailed on her special motion to strike, she is entitled to recover reasonable attorney's fees and costs.

The court must address whether the \$26,323.21 in attorneys' fees and costs are reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, *supra*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel Landon D. Bailey and the exhibits attached thereto. Defense counsel charges an hourly rate of \$425 for himself and \$295 per hour for contract counsel Mony Chim. The court finds both of these hourly rates reasonable.

Turning next to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the declaration of counsel Bailey and the invoices attached thereto as Exhibit A, as well as the supplemental declaration of counsel Bailey and the invoices attached thereto as Exhibit A. As to the initial declaration, the invoices span from April 2025 to August 2025 and include billing for both the special motion to strike (for which fees are recoverable) and the demurrer (for which fees are not recoverable). Defendant acknowledges this and endeavors to apportion the recoverable fees from the non-recoverable fees. (Bailey Decl., pp. 3:26–9:8.) Even accounting for defendant's recommended apportionment, the court observes instances where defendant has insufficiently explained the work performed, instances where the work appears to be duplicative or unnecessary, and instances where the work described appears to be for the general defense litigation rather than specific to the anti-SLAPP motion. In light of these

observations, a reduction of hours is appropriate and the court approves a total of 41.1 hours. The court awards defendant's attorneys' fees as follows:

- 38.5 hours at an hourly rate of \$425 (counsel Bailey)
- 2.6 hours at an hourly rate of \$295 (counsel Chim)

As to costs, defendant seeks costs of \$143.83 for the litigation of the special motion to strike and an additional \$69.82 for costs for this motion. A careful review of the invoices provided as Exhibit A to the Bailey declaration support costs of \$128.55 for the initial motion. A careful review of the invoices provided as Exhibit A to the supplemental Bailey declaration support costs of \$69.82 for costs for this motion. The court approves costs in the amount of \$213.65.

Based on the foregoing, the motion is granted in part. Defendant is awarded attorneys' fees of \$17,129.50 and costs in the amount of \$213.65 for a total of \$17,343.15.

Motion to Consolidate

The motion to consolidate is dropped from the calendar as no moving papers were filed with the court.

15. S-CV-0056109 Bradley, Jerel v. Union Pacific Railroad Co.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to First Amended Complaint

Defendants demur to the seventh cause of action in plaintiff's first amended complaint ("FAC") on the grounds that it fails to state a valid cause of action. (Code Civ. Proc., § 430.10 (e).) Plaintiff opposes the demurrer. A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Plaintiff's seventh cause of action alleges defamation. The elements of defamation are: (1) a publication, (2) that is false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or cause special damage. (*Bishop v. The Bishop's School* (2022) 86 Cal.App.5th 893, 909, 910.) Here, a careful review of the FAC reveals it sufficiently alleges all elements to support plaintiff's claim for defamation, including publication. (*See Kelly v. General Telephone Co.* (1982) 136 Cal.App.3d 278, 284; *Agarwal v. Johnson* (1979) 25 Cal.3d 932, 944.) Under Civil Code section 46(3), false statements

which tend directly to injure a person in respect to their profession, trade or business constitute slander *per se*.

Defendants assert the statute of limitations bars plaintiff's claim. (Code Civ. Proc. §§ 430.10, subd. (e), 340(c).) To sustain a demurrer on this ground, the running of the statute of limitations must appear "clearly and affirmatively" from the face of the complaint. It is not enough that the complaint *might* be time barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 321.) Here, the FAC adequately alleges republication within a year prior to the filing of the complaint. It does not appear clearly and affirmatively from the face of the complaint that the claim is barred.

Based on the foregoing, the court overrules defendants' demurrer to the seventh cause of action for defamation. Defendants shall file their answer by May 8, 2026.

16. S-CV-0056213 Mora, Michael F v. Cavanaugh, Shannon Glen

Demurrer to the Complaint

Defendants Shannon Glen Cavanaugh aka S. Glen Cavanaugh and Cavalry Automotive Ventures, Inc. demur to the first and third causes of action for breach of contract and fraud, respectively, for failure to allege facts sufficient to state a cause of action pursuant to Code of Civil Procedure section 430.10(e). Plaintiff opposes the motion.

Defendants' and plaintiff's request the court take judicial notice of the complaint filed September 16, 2025 is granted.

Plaintiff's objections to portions of the Jensen declaration are overruled.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendant Cavanaugh contends the breach of contract claim fails because the complaint does not adequately allege facts supporting plaintiff's performance or defendant's breach. A careful review of the complaint and Exhibit 1 thereto, however, reveals the complaint sufficiently alleges facts supporting the existence of a contract between the parties, plaintiff's performance or excuse for nonperformance, defendant's breach, and damages. The demurrer is overruled on this basis.

Defendants contend the complaint falls short of the particularity required for fraud claims. Fraud must be pleaded with sufficient particularity that shows “how, when, where, to whom, and by what means the representations were tendered.” (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) Against a corporate defendant, a plaintiff must also allege the name(s) of the person(s) who made the fraudulent representations and their authority to speak. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of Cal.* (2016) 245 Cal.App.4th 821, 838.) Here, a careful review of the complaint reveals it sufficiently alleges all elements of a fraud claim and meets the heightened pleading standard. The demurrer is overruled on this basis.

Defendants also contend the fraud claim fails because it is prohibited by the economic loss rule. However, the economic loss rule does not prohibit a fraud claim “based on conduct committed during the course of a contractual relationship” and fraud claims involve “different policy concerns than” the types of claims that are prohibited by the economic loss rule. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43, discussing *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 991.) The demurrer is overruled on this basis.

Based on the foregoing, the demurrer is overruled in its entirety. Defendants shall file and serve a responsive pleading by May 8, 2026.

17. S-CV-0056325 Tadros, Michael v. Roseville Point Health & Wellness

Moving party is advised the notice of a motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant’s Motion to Compel Arbitration

Defendant’s request for judicial notice is granted.

Defendant Roseville Point Health and Wellness Center, LLC moves to compel arbitration of claims by plaintiff Michael Tadros, by and through his guardian ad litem, Mary Manoli, individually, and to stay the action pending the completion of arbitration. Defendant contends plaintiff voluntarily executed a binding agreement to arbitrate all claims against defendant.

Pursuant to Code of Civil Procedure section 1281.2, a trial court shall order arbitration of a controversy if an agreement to arbitrate the controversy exists, with certain exceptions inapplicable here. California has a strong public policy in favor of arbitration, but “a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration.” (*Buckner v. Tamarin* (2002) 98 Cal.App.4th 140, 142.) *Gordon v. Atria Management Co., LLC* (2021) 70 Cal.App.5th 1020, 1026.

In support of its motion, defendant presents an arbitration agreement between the parties as Exhibit B to the declaration of Erin Muzyka. The agreement identifies the parties as set forth in the following language at page 1, in the first full paragraph:

“This Arbitration Agreement is executed by and between Roseville Point Health & Wellness Center (“the Facility”) and Michael Tadros, either for him/herself or as the Legal Representative and/or Agent for Michael Tadros (collectively, ‘Resident’) in conjunction with the Resident’s admission to the Facility and relating to the provision of nursing facility services by Facility to Resident.”

(Def. Mot. Compel Arb. at 4.) The agreement is not signed by plaintiff, but rather by his daughter, Mary Manoli. Defendant contends Ms. Manoli acted as her father’s recognized medical decision-maker and authorized representative for several years and that she was a person authorized to execute the admission documents as her father’s representative under California law.

Plaintiff contends defendant has failed to establish the existence of an agreement to arbitrate because it has not demonstrated that Ms. Manoli, who electronically signed the agreement on May 6, 2023, had actual or ostensible authority to bind plaintiff to arbitration. Defendant offers no evidence of a power of attorney, nor any basis to find the existence of ostensible authority.

Plaintiff cites *Pagarigan v. Libby Care Center* (2002) 99 Cal.App.4th 298, 300, where the appellate court upheld the trial court’s denial of arbitration where the defendant skilled nursing facility failed to produce evidence the patient’s daughter was authorized to agree to arbitration on behalf of her comatose and mentally incompetent mother. (See also *Garrison v. Superior Court* (2005) 132 Cal.App.4th 253; *Hutcheson v. Eskaton FountainWood Lodge* (2017) 17 Cal.App.5th 937, 957 (distinguishing between authority to make a health care decision and authority to bind to arbitration.)

Defendant appears to argue ostensible agency. “An agency is ostensible when the principal intentionally, or by want of ordinary care, causes a third person to believe another to be his agent who is not really employed by him.” (Civ. Code, § 2300.) “Even when there is no written agency authorization, an agency relationship may arise by oral consent or by implication from the conduct of the parties. (*Van’t Rood v. County of Santa Clara* (2003) 113 Cal.App.4th 549, 571.) The existence of ostensible agency cannot be established by the conduct of the agent alone; conduct by the principal is essential to create the agency. (*Lovetro v. Steers* (1965) 234 Cal.App.2d 461, 474-475; see Civ. Code, §§ 2298, 2300.) “‘The principal must in some manner indicate that the agent is to act for him, and the agent must act or agree to act on his behalf and subject to his control.’” Thus, the “formation of an agency relationship is a bilateral matter. Words or conduct by both principal and agent are necessary to create the relationship.” (*Van’t Rood, supra*, 113 Cal.App.4th at p. 571; *Flores v. Evergreen at San Diego, LLC* (2007) 148 Cal.App.4th 581, 587-88; *Hutcheson, supra*, 17 Cal.App.5th at 958.) Here, defendant fails to present evidence supporting the existence of ostensible agency.

Conclusion

Based on the foregoing, the court denies defendant's motion to compel arbitration of plaintiff's claims and denies defendant's motion to stay the action. Defendant shall file its answer by May 8, 2026.

18. S-CV-0056771 Hammick, James Hunter v. Vernon, Jeffrey Jace

Specially Appearing Defendants' Motion to Quash Service of Summons for Lack of Personal Jurisdiction

Defendants RentDue Capital Fund 2 LLC, Rentdue Capital LLC, Jeffrey Jace Vernon and Ann Vernon move to quash service of summons based on lack of personal jurisdiction pursuant to Code of Civil Procedure section 418.10. Plaintiff opposes the motion and makes an alternative request for jurisdictional discovery. A plaintiff is generally entitled to conduct discovery with regard to a jurisdictional issue before the court rules on a motion to quash. (*Mihlon v. Superior Court* (1985) 169 Cal.App.3d 703, 711.) The court exercises its discretion and grants plaintiff leave to engage in limited discovery on the issue of personal jurisdiction. The court continues the hearing on the instant motion to quash to be heard on **June 30, 2026, at 8:30 a.m. in Department 42**, on the same date as the demurrer filed by co-defendant, Talease Perkins. Plaintiff may file and serve a supplemental opposition to the motion on or before June 16, 2026. Defendants may file and serve a supplemental reply on or before June 23, 2026.

19. S-CV-0057073 Foulk, Steven R v. Loandepot.com LLC

Application for Temporary Order

On April 15, 2026, plaintiff filed an application seeking a court order requiring defendant Selene Finance LP, the current servicer on a mortgage loan for which plaintiff is the obligor, to pay monthly premiums on two home insurance policies pending hearing on plaintiff's motion for preliminary injunction. By written order on April 16, 2026, the court scheduled the matter for hearing. Defendant Selene Finance LP filed an opposition on April 21, 2026 and presented evidence that both payments have been made. As it appears that plaintiff's request is now moot, the application is denied.

No appearance of the parties is required by the court. Oral argument will only take place if the parties timely request oral argument pursuant to Local Rule 20.2.3.